



Western Australia

Privacy and Responsible Information Sharing Act 2024

Privacy and Responsible Information Sharing Act 2024

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Defined terms



Western Australia

Privacy and Responsible Information Sharing Act 2024

An Act —

- **to provide a framework to protect the privacy of personal information handled by public entities, Ministers, Parliamentary Secretaries and contracted service providers to public entities; and**
- **to provide a framework to authorise the responsible sharing of information held by public entities; and**
- **to establish the office of Chief Data Officer; and**
- **to amend the *Freedom of Information Act 1992*; and**
- **to make consequential amendments to other Acts; and**
- **for related purposes.**

Part 1 — Preliminary

1. Short title

This is the *Privacy and Responsible Information Sharing Act 2024*.

2. Commencement

This Act comes into operation as follows —

- (a) Part 1 — on the day on which this Act receives the Royal Assent;
- (b) Part 7 —
 - (i) if the *Criminal Law (Mental Impairment) Act 2023* section 156 comes into operation on or before the day on which Part 1 of this Act comes into operation under paragraph (a) — immediately after Part 1 of this Act comes into operation; or
 - (ii) otherwise — on the day on which the *Criminal Law (Mental Impairment) Act 2023* section 156 comes into operation;
- (c) the rest of the Act — on a day fixed by proclamation, and different days may be fixed for different provisions.

3. Objects

The objects of this Act are as follows —

- (a) to promote responsible and transparent practices for handling personal information by IPP entities;
- (b) to balance the public interest in protecting the privacy of personal information handled by IPP entities with the public interest in the free flow of information;
- (c) to provide a means for individuals to complain about alleged interferences with their privacy;

- (d) to promote responsible information security practices by IPP entities;
- (e) to promote the responsible handling of information held by public entities as a public resource that supports government policy, programs and services;
- (f) to facilitate the responsible collection, use and disclosure for permitted purposes of information held by public entities;
- (g) to remove barriers that unnecessarily impede the responsible sharing of information held by public entities;
- (h) to provide protections in connection with the sharing of information under this Act, including by —
 - (i) specifying the purposes for which, and the circumstances in which, information sharing is permitted or required; and
 - (ii) ensuring that information shared under this Act is protected from unauthorised use or disclosure.

4. Terms used

In this Act —

Aboriginal community controlled organisation means an organisation described in clause 44 of the “National Agreement on Closing the Gap” between the Coalition of Aboriginal and Torres Strait Islander Peak Organisations, the Commonwealth, the States, the Australian Capital Territory, the Northern Territory and the Australian Local Government Association dated July 2020;

Aboriginal information assessment has the meaning given in section 177(1);

Aboriginal information use plan has the meaning given in section 177(4);

act includes an omission;

affected individual —

- (a) in relation to a notifiable information breach, has the meaning given in section 58; or
- (b) in relation to a determination by the Information Commissioner under section 107, has the meaning given in section 107(1);

approved form means a form approved by the person to whom the form is permitted or required to be given under this Act;

approved privacy code of practice means a privacy code of practice approved by the Governor under section 32(3);

assessed notifiable information breach, in relation to an IPP entity, has the meaning given in section 61(3);

assessed shared information breach, in relation to a recipient under an information sharing agreement, has the meaning given in section 192(4);

Australian Information Commissioner means the person appointed as Australian Information Commissioner under the *Australian Information Commissioner Act 2010* (Commonwealth) section 14(1);

authorised officer means a person designated as an authorised officer under section 120(1);

automated decision-making process has the meaning given in section 16(2);

automated system has the meaning given in section 16(1);

care leaver means a person who —

- (a) has reached 18 years of age; and
- (b) qualifies for assistance under the *Children and Community Services Act 2004* section 96 for the purposes of Part 4 Division 6 of that Act;

Chief Data Officer means the Chief Data Officer appointed in accordance with section 198;

Chief Data Officer guidelines means guidelines issued under section 201, as in effect from time to time;

child means a person who is under 18 years of age;

child protection functions means functions that relate to —

- (a) the protection and care of children, unborn children and care leavers; or
- (b) promoting the wellbeing of children, unborn children and care leavers, including their —
 - (i) care; and
 - (ii) physical, emotional, psychological and educational development; and
 - (iii) physical, emotional and psychological health; and
 - (iv) safety;

collect, in relation to information —

- (a) means to obtain the information from any source or by any means; and
- (b) includes to infer the information from, or generate the information by the use or interpretation of, other information;

community policing functions, of the Police Force of Western Australia, includes the following —

- (a) undertaking missing persons investigations;
- (b) transferring individuals into the care or custody of another entity;
- (c) supporting victims of crime;
- (d) locating next of kin;
- (e) employing diversionary strategies;
- (f) coordinating operational response and dispatch;
- (g) other functions prescribed by the regulations;

compliance notice has the meaning given in section 122(1);

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conciliator means a person nominated as a conciliator under section 96(1);

confidential or commercially sensitive information means —

- (a) information that is required to be kept confidential because of a contractual or equitable obligation; or
- (b) any other information the disclosure of which would prejudice any person's legitimate business, professional, commercial or financial interests;

consent means express consent or implied consent;

contracted service provider has the meaning given in section 8(2);

data analytics work has the meaning given in section 12(2);

data integration has the meaning given in section 12(4);

data linkage has the meaning given in section 12(3);

data set has the meaning given in section 12(1);

de-identified information has the meaning given in section 11(2);

de-identify, in relation to personal information, has the meaning given in section 11(1);

derived information has the meaning given in section 170(d)(iv);

disability has the meaning given in the *Disability Services Act 1993* section 3;

disclose has a meaning affected by section 10;

electronic means includes —

- (a) an electronic database or document system; and
- (b) any other means by which a document can be given or accessed electronically;

emergency response functions means functions that relate to responding to an emergency, including by combating its effects,

providing emergency assistance to persons affected and reducing resulting damage;

exempt information has the meaning given in section 158;

external entity has the meaning given in section 156(2);

family violence has the meaning given in the *Restraining Orders Act 1997* section 5A(1);

government information, in relation to a public entity, has the meaning given in section 157;

handle, in relation to information, means to collect, hold, manage, use or disclose the information;

Health and Disability Services Complaints Office Director means the Director as defined in the *Health and Disability Services (Complaints) Act 1995* section 3(1);

health information means —

- (a) personal information that relates to —
 - (i) the health (at any time) of an individual; or
 - (ii) the disability (at any time) of an individual; or
 - (iii) an individual's expressed wishes about the future provision of health services to the individual; or
 - (iv) a health service provided, or to be provided, to an individual;

or

- (b) other personal information collected to provide, or in providing, a health service;

health service means any of the following —

- (a) a health service as defined in the *Health Services Act 2016* section 7;
- (b) the supply or prescription of a medicine by a person registered under the *Health Practitioner Regulation National Law (Western Australia)*;

- (c) the prescription, supply or administration of a voluntary assisted dying substance under the *Voluntary Assisted Dying Act 2019*;
- (d) a service or activity, provided in conjunction with a service or activity referred to in paragraph (a), (b) or (c), of a class prescribed by the regulations;

high privacy impact function or activity has the meaning given in section 79(1);

hold, in relation to information, means to have possession or control of the information, whether alone or jointly with others;

holding entity, in relation to an information sharing request, has the meaning given in section 160(3)(b);

information breach means —

- (a) unauthorised access to, or unauthorised disclosure of, information; or
- (b) loss of information;

Information Commissioner means the person appointed as Information Commissioner under the *Information Commissioner Act 2024* section 5(2);

information holdings request has the meaning given in section 196(2);

information privacy principle (IPP) means an information privacy principle set out in Schedule 1;

information sharing agreement has the meaning given in section 168(1);

information sharing CEO means the chief executive officer of the information sharing Department;

information sharing Department means the department of the Public Service principally assisting in the administration of Part 3;

information sharing direction has the meaning given in section 163(1);

Information Sharing Minister means the Minister to whom the administration of Part 3 is from time to time committed by the Governor;

information sharing request has the meaning given in section 160(3)(a);

interference with the privacy, of an individual, has the meaning given in section 15;

IPP entity has the meaning given in section 14;

judicial body has the meaning given in section 7;

law enforcement agency means any of the following bodies or persons, including staff under the control of the body or person —

- (a) the Police Force of Western Australia; or
- (b) the Corruption and Crime Commission established under the *Corruption, Crime and Misconduct Act 2003* section 8; or
- (c) the Parliamentary Inspector of the Corruption and Crime Commission appointed under the *Corruption, Crime and Misconduct Act 2003* section 189; or
- (d) a commission established under a written law or a law of the Commonwealth, another State or a Territory that has the function of investigating criminal activity or a class of criminal activity; or
- (e) the Mental Impairment Review Tribunal established under the *Criminal Law (Mental Impairment) Act 2023* section 156; or
- (f) the Prisoners Review Board established under the *Sentence Administration Act 2003* section 102; or
- (g) the Supervised Release Review Board established under the *Young Offenders Act 1994* section 151; or
- (h) the department of the Public Service principally assisting in the administration of the *Sentence Administration Act 2003* Part 8; or

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- (i) the department of the Public Service principally assisting in the administration of the *Police Act 1892*; or
- (j) the Director of Public Prosecutions appointed under the *Director of Public Prosecutions Act 1991* section 5; or
- (k) the Commissioner of State Revenue appointed in accordance with the *Taxation Administration Act 2003* section 6; or
- (l) the sheriff referred to in the *Supreme Court Act 1935* section 156; or
- (m) the Australian Crime Commission established by the *Australian Crime Commission Act 2002* (Commonwealth) section 7; or
- (n) the Australian Federal Police; or
- (o) the police force of another State or a Territory; or
- (p) a public entity not covered by another paragraph of this definition that is responsible for the performance of functions related to —
 - (i) the prevention, detection, investigation, prosecution or punishment of criminal offences or contraventions of a law that are subject to a penalty or sanction; or
 - (ii) the management of property seized or restrained under a law relating to the confiscation of proceeds of crime; or
 - (iii) the enforcement of a law, or of an order made under a law, relating to the confiscation of proceeds of crime; or
 - (iv) the execution or implementation of orders made by a court or tribunal; or
 - (v) the protection of public revenue;
- or
- (q) a body, or the holder of an office, prescribed by the regulations;

law enforcement functions, of a law enforcement agency —

- (a) means functions of the law enforcement agency that relate to —
 - (i) the prevention, detection, investigation, prosecution or punishment of criminal offences or contraventions of a law that are subject to a penalty or sanction; or
 - (ii) the management of property seized or restrained under a law relating to the confiscation of proceeds of crime; or
 - (iii) the enforcement of a law, or of an order made under a law, relating to the confiscation of proceeds of crime; or
 - (iv) the preparation for or conduct of proceedings in a court or tribunal; or
 - (v) the execution or implementation of orders made by a court or tribunal; or
 - (vi) the protection of public revenue;
 and
- (b) includes, in the case of the Police Force of Western Australia, community policing functions;

materially assisted, in relation to the making of a decision and an automated system, has the meaning given in section 16(3);

member of Commissioner staff means a member of staff as defined in the *Information Commissioner Act 2024* section 3;

notice to produce or attend has the meaning given in section 113(1);

notifiable information breach has the meaning given in section 57;

officer, of a public entity or other IPP entity, includes —

- (a) the principal officer of the entity; and

- (b) a person employed in, by, or for the purposes of, the entity; and
- (c) if the entity is a body (whether incorporated or not) constituted by 2 or more persons — any of those persons;

outsourcing entity has the meaning given in section 8(1);

Parliamentary Commissioner for Administrative Investigations means the Commissioner as defined in the *Parliamentary Commissioner Act 1971* section 4;

Parliamentary Secretary means —

- (a) a Parliamentary Secretary appointed under the *Constitution Acts Amendment Act 1899* section 44A(1); or
- (b) the Parliamentary Secretary of the Cabinet;

permitted purpose has the meaning given in section 159(1);

personal information —

- (a) means information or an opinion, whether true or not, and whether recorded in a material form or not, that relates to an individual, whether living or dead, whose identity is apparent or can reasonably be ascertained from the information or opinion; and
- (b) includes information of the following kinds to which paragraph (a) applies —
 - (i) a name, date of birth or address;
 - (ii) a unique identifier, online identifier or pseudonym;
 - (iii) contact information;
 - (iv) information that relates to an individual's location;
 - (v) technical or behavioural information in relation to an individual's activities, preferences or identity;

- (vi) inferred information that relates to an individual, including predictions in relation to an individual's behaviour or preferences and profiles generated from aggregated information;
- (vii) information that relates to 1 or more features specific to the physical, physiological, genetic, mental, behavioural, economic, cultural or social identity of an individual;

Police Force of Western Australia means the Police Force of Western Australia provided for by the *Police Act 1892*;

principal officer, in relation to a public entity or other IPP entity, has the meaning given in section 9;

privacy code of practice has the meaning given in section 28(1);

privacy complaint means a complaint under section 82(1);

Privacy Deputy Commissioner means the person appointed as Privacy Deputy Commissioner under the *Information Commissioner Act 2024* section 13(2);

privacy functions has the meaning given in section 142(1);

privacy guidelines means guidelines issued under section 148, as in effect from time to time;

privacy impact assessment means —

- (a) an assessment of a function or activity of an IPP entity conducted under section 79 or in compliance with a direction under section 80; or
- (b) an assessment of a relevant activity to be carried out under a proposed information sharing agreement conducted under section 176;

Privacy Minister means the Minister to whom the administration of Part 2 is from time to time committed by the Governor;

proposed provider, in relation to a proposed information sharing agreement, means a public entity that would be a provider under the agreement;

proposed recipient, in relation to a proposed information sharing agreement, means a public entity or external entity that would be a recipient under the agreement;

provider, in relation to an information sharing agreement, has the meaning given in section 168(2);

public entity has the meaning given in section 6;

public interest determination has the meaning given in section 45(1);

public register means a register or other document that —

- (a) is held by a public entity; and
- (b) contains information that a person was required or permitted to give to that public entity under a written law; and
- (c) is published, or available for inspection by members of the public (whether for a fee or charge or not), under a written law (other than as a result of a request for access under this Act or an application for access under the *Freedom of Information Act 1992* Part 2);

recipient, in relation to an information sharing agreement, has the meaning given in section 168(3);

re-identify, in relation to de-identified information, has the meaning given in section 11(3);

relevant activity, in relation to an information sharing agreement, has the meaning given in section 168(1)(c);

requesting entity, in relation to an information sharing request, has the meaning given in section 160(3)(c);

respondent, in relation to a privacy complaint, has the meaning given in section 82(2)(b);

responsible Minister means —

- (a) in relation to a public entity that is a department as defined in the *Public Sector Management Act 1994* section 3(1) — the Minister responsible for the administration of the department; or

- (b) in relation to a public entity to which paragraph (a) does not apply —
 - (i) for a public entity established or appointed under an enactment — the Minister to whom the administration of the enactment is from time to time committed by the Governor; or
 - (ii) for a public entity that is not established or appointed under an enactment — the Minister to whom the administration of the public entity is from time to time committed by the Governor;

or

- (c) in relation to a secrecy provision — the Minister to whom the administration of the secrecy provision is from time to time committed by the Governor;

responsible sharing principle means a responsible sharing principle set out in Schedule 2;

secrecy provision means a provision of a written law that prohibits or regulates the handling of information;

senior executive officer has the meaning given in the *Public Sector Management Act 1994* section 3(1);

senior officer, of a public entity or other IPP entity —

- (a) means an officer of the entity who has managerial responsibility; and
- (b) includes the principal officer of the entity;

sensitive Aboriginal family history information means information, including family history information, that —

- (a) relates to Aboriginal people and their ancestors; and
- (b) was collected in the period from 1898 until 1972 for the purposes of implementing laws, and government policies and practices, applying specifically to Aboriginal people;

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sensitive Aboriginal traditional information means information that, according to Aboriginal tradition, should not be disclosed to individuals who are not the knowledge holders of that information;

sensitive personal information means personal information —

- (a) that relates to an individual's —
 - (i) racial or ethnic origin; or
 - (ii) gender identity, in a case where the individual's gender identity does not correspond with their designated sex at birth; or
 - (iii) sexual orientation or practices; or
 - (iv) political opinions; or
 - (v) membership of a political association; or
 - (vi) religious beliefs or affiliations; or
 - (vii) philosophical beliefs; or
 - (viii) membership of a professional or trade association; or
 - (ix) membership of a trade union; or
 - (x) criminal record;
- or
- (b) that is health information; or
- (c) that is genetic or genomic information (other than health information); or
- (d) that is biometric information; or
- (e) from which information of a kind referred to in any of paragraphs (a) to (d) can reasonably be inferred;

shared information, in relation to a shared information breach, has the meaning given in section 191(a);

shared information breach has the meaning given in section 191;

significant decision has the meaning given in section 16(4);

special information sharing entity has the meaning given in section 156(1);

State services contract has the meaning given in section 8(1);

temporary public interest determination has the meaning given in section 49(1);

unique identifier —

- (a) means a number or other identifier assigned by an entity to an individual to uniquely identify that individual for the purposes of the operations of the entity; but
- (b) does not include an identifier that consists only of the individual's name;

variation agreement has the meaning given in section 179(1).

[Section 4 amended: No. 51 of 2024 s. 247.]

5. References to information privacy principles

A reference in this Act to an IPP followed by a designation is a reference to the provision with that designation in Schedule 1.

6. Public entities

(1) A **public entity** is —

- (a) a department of the Public Service; or
- (b) an entity specified in the *Public Sector Management Act 1994* Schedule 2 column 2; or
- (c) the Police Force of Western Australia; or
- (d) a local government, regional local government or regional subsidiary; or
- (e) a body, or the holder of an office, that is established for a public purpose under a written law; or
- (f) a body, or the holder of an office, that is established by the Governor or a Minister; or
- (g) a judicial body; or

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- (h) any other body, or the holder of any other office, that is prescribed by the regulations to be a public entity, being —
 - (i) a body or office that is established under a written law; or
 - (ii) a corporation or association over which control can be exercised by the State, a Minister, a body referred to in paragraph (a), (b), (e) or (f) or subparagraph (i), or the holder of an office referred to in paragraph (f) or subparagraph (i).
- (2) Despite subsection (1), each of the following is not a **public entity** —
 - (a) the Governor or the Governor’s establishment;
 - (b) the Legislative Council or a member or committee of the Legislative Council;
 - (c) the Legislative Assembly or a member or committee of the Legislative Assembly;
 - (d) a joint committee or standing committee of the Legislative Council and the Legislative Assembly;
 - (e) a Royal Commission or member of a Royal Commission;
 - (f) a department of the staff of Parliament referred to in the *Parliamentary and Electorate Staff (Employment) Act 1992*;
 - (g) a person holding an office established under a written law for the purposes of a body referred to in any of paragraphs (a) to (f).
- (3) Except to the extent provided by section 199 and regulations made under subsection (4), a person is not a separate public entity for the purposes of this Act by reason of —
 - (a) holding office as a member or other officer of a public entity; or

- (b) holding an office established for the purposes of a public entity.
- (4) The regulations may provide that, for the purposes of this Act or specified provisions of this Act —
 - (a) a specified body, or the holder of a specified office, is not a separate public entity but is part of a specified public entity; or
 - (b) a specified body, or the holder of a specified office, is a separate public entity and is not part of another public entity.

7. Judicial bodies

- (1) A **judicial body** is a court or tribunal established under a written law.
- (2) A registry or other office of a judicial body, and the staff of such a registry or other office, are part of the judicial body.
- (3) A person holding judicial or quasi-judicial office is not themselves, and is not part of, a judicial body or other public entity.

8. State services contracts and contracted service providers

- (1) A **State services contract** is a contract between a public entity (the **outsourcing entity**) and another person (other than a public entity) under which services are provided to the outsourcing entity or to other persons on behalf of the outsourcing entity.
- (2) A **contracted service provider** is —
 - (a) a party to a State services contract who provides services to or on behalf of an outsourcing entity under the contract; or
 - (b) a person who is a subcontractor (whether direct or indirect) of a person referred to in paragraph (a) for the purposes of the State services contract.

Note for this subsection:

Part 2 Division 11 provides for how Part 2 and the information privacy principles apply in relation to contracted service providers.

9. Principal officers

- (1) The **principal officer** of a Minister or Parliamentary Secretary is the Minister or Parliamentary Secretary.
- (2) The **principal officer** of a public entity is —
 - (a) in relation to a department of the Public Service or an entity specified in the *Public Sector Management Act 1994* Schedule 2 column 2 — the chief executive officer or chief employee of the department or entity; or
 - (b) in relation to the Police Force of Western Australia — the Commissioner of Police; or
 - (c) in relation to a local government — the chief executive officer of the local government; or
 - (d) in relation to a regional local government — the chief executive officer of the regional local government; or
 - (e) in relation to a regional subsidiary — the person who manages the affairs of the regional subsidiary; or
 - (f) in relation to any other public entity —
 - (i) if the regulations prescribe a person to be the principal officer of the public entity — that person; or
 - (ii) otherwise — the person determined under subsection (4).
- (3) The **principal officer** of a contracted service provider is —
 - (a) if the relevant State services contract designates a person with managerial responsibility in relation to the contracted service provider as the principal officer of the contracted service provider for the purposes of this Act — that person; or

- (b) otherwise — the person determined under subsection (4).
- (4) For the purposes of subsection (2)(f)(ii) or (3)(b), the person is —
 - (a) if the public entity or contracted service provider consists of 1 person (other than a body corporate) — that person; or
 - (b) if the public entity or contracted service provider is a body (whether incorporated or not) constituted by 2 or more persons — the person entitled to preside at any meeting of the body at which the person is present; or
 - (c) otherwise — the person responsible for managing the affairs of the public entity or contracted service provider.

10. Disclosure by public entities and other IPP entities

A reference in this Act to a public entity or other IPP entity **disclosing** information —

- (a) includes a reference to the entity making the information publicly available; and
- (b) does not include a reference to the entity disclosing the information to the entity itself or to an officer of the entity.

11. De-identification and re-identification of information

- (1) To **de-identify** personal information means to modify, or apply a process to, the information, with the result that the identity of an individual is not apparent, and cannot reasonably be ascertained, from the information.
- (2) Information is **de-identified information** at a particular time if, at that time —
 - (a) the information has been de-identified; and

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- (b) the identity of an individual is not apparent, and cannot reasonably be ascertained, from the information.
- (3) To **re-identify** de-identified information means to modify, or apply a process to, the information, with the result that the information again becomes personal information.

12. Data sets, data analytics work, data linkage and data integration

- (1) A **data set** is an organised collection of information in a form that is capable of being analysed or processed (whether by an individual or an automated system).
- (2) **Data analytics work** —
 - (a) is the examination and analysis of information for the purpose of drawing conclusions as a result of that examination and analysis; but
 - (b) does not include data linkage or data integration.
- (3) **Data linkage** is a process for —
 - (a) detecting instances where separate records (whether within a single data set or different data sets) appear to relate to the same individual, family, place, event or matter; and
 - (b) assigning an identifier (a **data linkage key**) to enable related records to be linked.
- (4) **Data integration** is the combination or collation of information in 2 or more data sets, whether using data linkage keys or by another process.

13. Act binds Crown

This Act binds the Crown in right of Western Australia and, so far as the legislative power of the Parliament permits, the Crown in all its other capacities.

[Parts 2-6 have not come into operation.]

**Part 7 — Amendment to this Act linked to
commencement of *Criminal Law (Mental Impairment)*
Act 2023**

246. Act amended

This Part amends this Act.

247. Section 4 amended

In section 4 in the definition of *law enforcement agency* delete paragraph (e) and insert:

- (e) the Mental Impairment Review Tribunal established under the *Criminal Law (Mental Impairment) Act 2023* section 156; or

[Schedules 1 and 2 have not come into operation.]

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Notes

This is a compilation of the *Privacy and Responsible Information Sharing Act 2024*. For provisions that have come into operation see the compilation table. For provisions that have not yet come into operation see the uncommenced provisions table.

Compilation table

Short title	Number and year	Assent	Commencement
<i>Privacy and Responsible Information Sharing Act 2024</i> Pt. 1 and 7	51 of 2024	6 Dec 2024	Pt. 1 and 7: 6 Dec 2024 (see s. 2(a) and (b)(i))

Uncommenced provisions table

To view the text of the uncommenced provisions see *Acts as passed* on the WA Legislation website.

Short title	Number and year	Assent	Commencement
<i>Privacy and Responsible Information Sharing Act 2024</i> (other than Pt. 1 and 7)	51 of 2024	6 Dec 2024	To be proclaimed (see s. 2(c))

Defined terms

*[This is a list of terms defined and the provisions where they are defined.
The list is not part of the law.]*

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